

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

June 4, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
3	24-01445819 <i>Hovarter vs. Borski</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint 3) Joinder Motions 1 and 3: Demurrer to SAC and Motion for Joinder Defendants Loren Borski and Evell Stanley’s demurrer to the Second Amended Complaint (“SAC”) is OVERRULED. Nominal Defendant Monarch’s Motion for Joinder in Defendants’ demurrer is DENIED. Monarch’s joinder is untimely as it was filed just one day before Plaintiff’s opposition to the demurrer was due. Further, the joinder raises new arguments regarding the 7th and 8th causes of action that were not made in the demurrer. Thus, Plaintiff’s objection to the joinder is SUSTAINED. Defendants’ Request for Judicial Notice of Exhibits 1-6 is GRANTED. Defendants’ request as to Exhibits 7 and 8 is GRANTED, but only as to their existence and not the truth of any of the factual assertions made therein. Plaintiff’s Request for Judicial Notice of Exhibit 3 is GRANTED. Plaintiff’s request as to Exhibits 1, 2, and 4 is DENIED. Defendants’ objections to Plaintiff’s Exhibits 1, 2, and 4 are SUSTAINED. Plaintiff’s objection to the Declaration of Rosemary Amezcua-Moll, ¶ 13 and Exhibit E is SUSTAINED. <u>1st – 7th Derivative Causes of Action</u> Defendants demur to the first through seventh derivative causes of action on the grounds that the SAC does not allege sufficient facts showing he complied with the statutory prerequisites of Corporations Code section 800 to have standing to assert derivative claims on behalf of Nominal Defendant Monarch Heavy Haul Corporation (“Monarch”). Corporations Code section 800, subdivision (b) provides, in pertinent part: No action may be instituted or maintained in right of any domestic or foreign corporation by any shareholder of shares or of voting trust certificates of the corporation unless both of the following conditions exist: (1) The plaintiff alleges in the complaint that plaintiff was a shareholder, of record or beneficially . . . and (2) The plaintiff alleges in the complaint with particularity plaintiff’s efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that the plaintiff has either informed the

corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file.

A shareholder must fully comply with the procedural prerequisites of section 800, subdivision (b), before filing a derivative action on behalf of that corporate entity. (See *Schrage v. Schrage* (2021) 69 Cal.App.5th 126, 158.) “Alternatively, the plaintiff may demonstrate that such a demand on the board would have been futile.” (*Shields v. Singleton* (1993) 15 Cal.App.4th 1611, 1618 [footnote omitted].) If the complaint fails to fully comply with either of these statutory requirements, it is subject to a demurrer. (*Id.* at p. 1619.)

Demand Futility

Defendants argue the SAC fails to adequately allege demand futility. Plaintiff argues the SAC adequately alleges demand futility as to each director.

“Although ‘jurisdictions differ widely in defining the circumstances under which demand on directors will be excused,’ demand typically is deemed futile when a majority of the directors have participated in or approved the alleged wrongdoing, or are otherwise financially interested in the challenged transactions.” (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 790 [cleaned up].)

“California courts commonly look to two tests enunciated by the Delaware Supreme Court for determining the adequacy of the pleading of demand futility. Where a decision of the board of directors is challenged in the derivative suit, the *Aronson* test asks ‘whether, under the particularized facts alleged, a reasonable doubt is created that: (1) the directors are disinterested and independent [or] (2) the challenged transaction was otherwise the product of a valid exercise of business judgment.’ (*Aronson v. Lewis* (Del. 1984) 473 A.2d 805, 814 (*Aronson*) . . . But where the board that would be considering the demand did not make a business decision which is being challenged in the derivative suit’ (*Rales v. Blasband* (Del. 1993) 634 A.2d 927, 933-934 (*Rales*)), the *Rales* test asks whether ‘the particularized factual allegations of a derivative stockholder complaint create a reasonable doubt that, as of the time the complaint is filed, the board of directors could have properly exercised its independent and disinterested business judgment in responding to a demand. If the derivative plaintiff satisfies this burden, then demand will be excused as futile.’” (*Apple Inc. v. Superior Court* (2017) 18 Cal.App.5th 222, 233 [cleaned up]; but see *Kanter v. Reed* (2023) 92 Cal.App.5th 191, 206, fn. 9 [acknowledging the “[t]he Delaware Supreme Court recently combined the *Rales* and *Aronson* tests” into a universal test but applying the *Rales* test].)

The court notes “[t]he Delaware Supreme Court recently adopted a universal test for assessing demand futility.” (*Tola v. Bryant* (2022) 76 Cal.App.5th 746, 752 [applying the new universal test].) However, there

does not seem to be a consensus as to its application in California. (See *Kanter v. Reed* (2023) 92 Cal.App.5th 191, 206, fn. 9 [acknowledging the “[t]he Delaware Supreme Court recently combined the *Rales* and *Aronson* tests” into a universal test but applying the *Rales* test].)

“A director will be deemed not to be disinterested if the facts alleged ‘demonstrate[] a potential personal benefit or detriment to the director as a result of the decision.’ [Citations.] The personal benefit must arise out of the transaction being challenged.” (*Bader, supra*, 179 Cal.App.4th at p. 792.) Directors are also not impartial or disinterested if they face a substantial likelihood of personal liability. (*Kanter v. Reed* (2023) 92 Cal.App.5th 191, 206 (*Kanter*).)

“[I]n order to evaluate the demand futility claim, the court must be apprised of facts specific to *each director* from which it can conclude that that particular director could or could not be expected to fairly evaluate the claims of the shareholder plaintiff.” (*Shields v. Singleton* (1993) 15 Cal.App.4th 1611, 1622 [emphasis added].) The allegations must be made with particularity; general averments do not suffice. (*Ibid.*; see Corp. Code, § 800, subd. (b)(2).) “Courts evaluating demand futility at the pleading stage can draw reasonable inferences as to director interest *when adequately founded on particularized allegations*.” (*Apple, supra*, 18 Cal.App.5th at p. 257 [emphasis in original]; *Sandys v. Pincus* (Del. 2016) 152 A.3d 124, 128 [while the plaintiff “ ‘is bound to plead particularized facts in pleading a derivative complaint,’ ” the court assessing the sufficiency of the derivative complaint is “ ‘bound to draw all inferences from those particularized facts in favor of the plaintiff, not the defendant’ ”].)

“For purposes of assessing demand futility upon the filing of an amended complaint, ‘even if the act or transaction complained of in the amendment is essentially the same conduct that was challenged’ in the prior complaint, the proper inquiry is ‘by reference to the board in place at the time when the amended complaint’ was filed.” (*Apple, supra*, 18 Cal.App.5th at p. 250.) Accordingly, where “an amended complaint alleges derivative claims that were previously deemed legally insufficient, the demand requirement must be assessed in relation to the board of directors in place when the amended complaint is filed.” (*Id.* at p. 251.)

Here, the derivative claims alleged in the SAC stem from conduct that did not involve a decision of the board. Therefore, the *Rales* test rather than the *Aronson* test applies.

Defendants’ successful demurred to the derivative claims of the First Amended Complaint (“FAC”). Defendants’ judicially noticed documents show that the composition of Monarch’s board of directors changed since the filing of the FAC on 12/17/25 and the SAC on 9/25/25. (Defendants’ Request for Judicial Notice in Support of Demurrer (“Defendants’ RJN”), Exs. 1, 3, 5.) Thus, Plaintiff must show demand futility regarding Monarch’s board as of the time Plaintiff filed the SAC. The records show that as of 9/25/25, Monarch’s board

consisted of Russell Loud and John Borski, who are not parties to this action, and Defendant Stanley. (Defendants' RJN, Exs. 1, 3, 5; see also SAC ¶¶ 20-21.) Accordingly, the SAC must allege facts specific to each director showing a majority of the board members were not disinterested or independent decision makers. (See *Shields, supra*, 15 Cal.App.4th at p. 1622; *Apple, supra*, 18 Cal.App.5th at pp. 248, 258.)

The SAC alleges the following Regarding demand futility:

“21. Making a demand on the current board of directors, Defendant Stanley, Russell Loud and John Borski is also futile. According to the facts alleged herein, Defendant Stanley has misappropriated and embezzled the Company's funds, and dissipated Company assets to benefit Orange Courier, Inc., a company solely owned by Defendant Stanley. Defendant Stanley's interests, therefore, are directly adverse to the Company's interests, and she is thus incapable of making impartial, unbiased decisions. Russell Loud has been in a longtime romantic relationship with Defendant Stanley and is incapable of making impartial, unbiased decisions regarding a lawsuit against Defendant Stanley. Similarly, John Borski is Borski's brother and is incapable of making impartial, unbiased decisions regarding a lawsuit against his immediate family member. Further, the Company has not agreed to bring a lawsuit directly.”

(SAC, ¶ 21.)

As to Russell Lord and John Borski, the SAC's conclusory allegations that Mr. Lord is in a “longtime romantic relationship with Defendant Stanley” and John Borski's familial relationship with Defendant Loren Borski necessarily render “them incapable of making impartial, unbiased decisions” are insufficient. (See *Apple, supra*, 18 Cal.App.5th at 257.) Additionally, allegations of a personal friendship with a controlling shareholder “do not suffice to cast reasonable doubt as to the director's independence.” (*Bader, supra*, 179 Cal.App.4th at 792.)

While the Opposition also references paragraphs in the SAC and judicially noticed documents that allege that Mr. Loud was elected as a Monarch Director after the lawsuit was filed and Mr. John Borski was elected as a Director during the pending lawsuit (Opp., p. 9, lines 2-3, lines 27-28), there is no indication in the SAC or the judicially noticed documents when they were elected. Additionally, Opposition references paragraphs in the SAC where statements were purportedly made, but they are not in those paragraphs. As an example, the Opposition claims paragraphs 6 and 15 of the SAC state that Mr. Loud was elected a Director after the lawsuit was filed. But those paragraphs do not actually say that. The Opposition also argues Defendant Stanley gifted Mr. Loud real property. However, that fact and the circumstances surrounding the purported give are not alleged in the SAC. Further, the truth of whether such real property was actually “gifted” is not the proper subject of

judicial notice and subject to Defendants' objections which have been sustained.

Demand

The SAC alleges in the alternative that Plaintiff provided Monarch as well as "its current board of directors, Defendant Stanley, Russell Loud (Defendant Stanley's longtime partner), and John Borski (Borski's brother), and Borski with a true and correct copy of the Proposed Second Amended Complaint prior to filing the Second Amended Complaint." (SAC, ¶ 20.) This is sufficient.

Defendants complain that Plaintiff transmitted the demand to Monarch less than 24 hours before the filing of the SAC on 9/25/25. This argument fails because that fact is not alleged in the SAC and is based on extrinsic evidence that is subject to Plaintiff's objection which has been sustained.

Therefore, the demurrer to the first through seventh derivative causes of action is OVERRULED.

8th Individual Cause of Action - Involuntary Dissolution

Defendants demur to the eighth individual cause of action on the grounds that the SAC does not state facts sufficient to constitute a cause of action.

The SAC seeks involuntary dissolution pursuant to Corporations Code section 1800(b)(4) and (b)(5). Corporations Code section 1800(b) provides for the involuntary dissolution of a corporation where, among other grounds, "[¶] (4) Those in control of the corporation have been guilty of or have knowingly countenanced persistent and pervasive fraud, mismanagement or abuse of authority or persistent unfairness toward any shareholders or its property is being misapplied or wasted by its directors or officers. [¶] (5) In the case of any corporation with 35 or fewer shareholders (determined as provided in Section 605), liquidation is reasonably necessary for the protection of the rights or interests of the complaining shareholder or shareholders." (Corp. Code § 1800(b)(4) and (5).)

The court previously sustained Defendants' demurrer to this cause of action because the FAC's incorporation of all prior paragraphs into a single paragraph, without alleging facts, was a "shotgun pleading" insufficient to show liquidation was reasonably necessary.

The court finds Plaintiff has cured this this defect by alleging facts within this cause of action to support the claim for involuntary dissolution. (See SAC, ¶¶67-68.)

The SAC also sufficiently alleges facts showing the liquidation is reasonably necessary to protect Plaintiff's rights as a 40% shareholder. (SAC, ¶ 68.)

At the pleading stage, when viewed as a whole, these allegations are sufficient.

Defendants' unclean hands argument is inappropriate as it is not based on allegations of the SAC or facts that are the proper subject of judicial notice. (See *Steed v. Department of Consumer Affairs* (2012) 204 Cal.App.4th 112, 121 [a court cannot take judicial notice of hearsay allegations as being true, just because they are part of a court record or file].)

"The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605.)

Therefore, the demurrer to the eighth individual cause of action is OVERRULED.

Motion 2: Motion to Strike

Defendants Motion to Strike is GRANTED, in part, and DENIED, in part, without leave to amend.

Defendants move to strike numerous allegations of the SAC, listed a. – k. in Defendants' notice of motion, on the grounds that they are "irrelevant, false, improper and irrelevant" pursuant to Code of Civil Procedure, section 436, subdivision (a), and are not drawn or filed in conformity with the laws of this state, a court rule or other of court" pursuant to section 436, subdivision (b).

The court may strike from a pleading any irrelevant, false, or improper mater, or may strike all or any part of a pleading that is not dawn or filed in conformity with this state's laws, a court rule or an order of the court. law or court orders, and/or contains false or improper information. (Code Civ. Proc., § 436, subds. (a), (b); *Brandwein v. Butler* (2013) 218 Cal.App.4th 1485, 1497.) The grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (Code Civ. Proc., § 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 Cal.App.4th 1014, 1032.) The court accepts as true all material factual allegations; however, it "does not consider conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts." (*Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1163.)

Item (a): Defendants dispute the allegation in paragraph 5 of the SAC that Borski resides in Orange County and contend that Borski resides in Riverside. However, Defendants' argument is not based on allegations that appear on the face of the SAC but on material that is not the proper subject of judicial notice. The motion is DENIED as to these allegations.

Items (b), (f), and (g): These items target nothing more than typographical errors that do not materially alter a reader's understanding of the SAC's allegations. The motion is DENIED as to these allegations.

Items (c), (d), and (e): Defendants seek to strike Paragraphs 13 through 19 of the SAC, together with Exhibits 1, 2, and 3 attached thereto, which appear under the heading “Demand Futility”. These allegations and exhibits are irrelevant because they solely relate to incidents occurring prior to Plaintiff’s filing of the FAC. However, because the court sustained Defendants’ demurrer as to the derivative claims in the FAC, for Plaintiff to allege demand futility under Corp. Code §800(b)(2) he must show demand futility regarding Monarch’s board of directors as of the time he filed the SAC, not any prior complaint. (*Apple, supra*, 18 Cal.App.5th at 231.) Therefore, no actions that pre-date the filing of the SAC are relevant here. The motion is GRANTED as to these allegations.

Item (h): Defendants seek to strike the entire paragraph 47 from the third cause of action for Breach of Fiduciary Duty, which alleges: “Defendant Stanley also improperly bound the Company to the MNY Capital Agreement, Spring Funding Agreement and a Stipulation of Settlement that benefited herself and Orange Courier, Inc., which she controls. As a result, Plaintiff is entitled to damages in a sum according to proof.” Defendants argue this paragraph should be stricken because the fact of damages in a breach of fiduciary duty claim must be certain but the future damages in paragraph 47 are speculative and the Court, therefore, lacks jurisdiction to hear that claim against Defendant Stanley. However, “[a] motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer.” (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) The motion is DENIED as to these allegations.

Item (i): Defendants seek to strike the phrase “to treble damages and” from the derivative fourth cause of action for Violation of California Penal Code § 496(a) arguing it is incorrect under the law for a plaintiff shareholder to recover any damages in a derivative action. However, Defendants fail to recognize that the SAC defines Plaintiff as both “Trevor Hovarter, Individually and Derivatively on Behalf of Monarch Heavy Haul Corporation.” (SAC, at p. 2:1-2.) Thus, while Plaintiff, individually, cannot seek damages, Plaintiff, derivatively on behalf of Monarch, can. (See *Apple, supra*, 18 Cal.App.5th at 248 [“A stockholder can seek to enforce the corporation’s rights in a derivative suit, but ‘[t]he fact remains that a derivative claim belongs to the corporation, not to the plaintiff asserting the claim on the corporation’s behalf.’”].) The motion is DENIED as to these allegations.

Items (j): Defendants seek to strike the following p. 15:23 – 16:2 from paragraph 66 of the eighth cause of action for Involuntary Dissolution, which alleges: “Plaintiff has personally guaranteed all of the Company's equipment finance loans and used his credit to obtain those loans for the Company. On January 17,2025, Defendants Borski and Stanley and the

		Board of Directors voted to remove Plaintiff from his position as an officer and director of the Company. On February 4, 2025, Plaintiff was terminated as an employee of the Company. As a result, Plaintiff no longer has a reasonable expectation of his salary. Further, the Company has ignored Plaintiff's corporate records request made on June 19, 2025, and August 29, 2025, pursuant to Corporations Code Section 1601." Defendants argue these allegations are irrelevant because they pertain to Plaintiff's role as an employee and not as Monarch's shareholder. Defendants are incorrect. These allegations are relevant as they explain the extent of the controlling shareholders' abuse of authority and persistent unfairness towards Plaintiff. They also provide additional context for why involuntary liquidation is reasonably necessary to protect Plaintiff's rights. The motion is DENIED as to these allegations. <u>Item (k)</u>: Defendants seek to strike the phrase "have been guilty of" from paragraph 67 of the eighth cause of action for Involuntary Dissolution. [The Motion incorrectly states this phrase appears in paragraph 68.] Defendants argue this is false because the SAC does not shows that Defendant Borski and Stanley have been found guilty of any wrongdoing since this is a civil action, not a criminal action. Defendants' argument lacks merit. The phrase "have been guilty of or have knowingly countenanced persistent and pervasive fraud, mismanagement or abuse of authority" that is alleged in paragraph 67 tracks the language of Corporation Code section 1800(b)(4) verbatim. (Corp. Code § 1800(b)(4).) The motion is DENIED as to these allegations.
4	24-01418766 <i>Bevli vs. Williams</i>	Motion for Leave to File Amended Complaint Plaintiffs Sangeeta Bevli and Gurcharan Bevli's Motion for Leave to Amend is GRANTED. Plaintiff is ORDERED To file the proposed amended complaint attached to this Motion within 5 days of this order. "A motion to amend a pleading before trial must: [¶] (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; [¶] (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [¶] (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, rule 3.1324(a).) Additionally, the party must submit a declaration providing "(1) The effect of the amendment; [¶] (2) Why the amendment is necessary and proper; [¶] (3) When the facts giving rise to the amended allegations were discovered; and [¶] (4) The reasons why the request for amendment was not made earlier." (Rule 3.1324(b).)

		Plaintiffs have complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiffs' counsel states the effect of the amendment, why the amendment is necessary and proper, when facts giving rise to the amended allegations were known, and why amendment was not sought earlier. (English Decl., ¶¶ 2-5.) Plaintiff has also included a copy of the amended complaint. (Mot., Ex. B-C.) Thus, Plaintiff has complied with the statutory requirements to move for leave to amend.
7	23-01313302 Carmona vs. Mazella New Tech Corporation	Motion for Summary Judgment and/or Adjudication Cross-Defendant Cal Pac Sheet Metal, Inc. ("Cal Pac") moves for Summary Judgment or, in the alternative, Summary Adjudication as to each of Cross-Complainant Mazzella New Tech Corporation's ("Mazzella") claims alleged in the Cross-Complaint against Cross-Defendant is DENIED. Cal Pac failed to provide Mazzella sufficient notice of the Motion. Code of Civil Procedure section 437c, subdivision (a)(2) requires 81 days' notice for a motion for summary judgment, with an additional two court days if the notice is served electronically. (<i>See</i> Code Civ. Proc., § 437c, subd. (a)(2); Cal. Rules Ct., Rule 2.251(h).) This notice period is mandatory; the court has no discretion to shorten the notice period absent the parties' express stipulation (<i>see McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116; <i>Urshan v. Musicians' Credit Union</i> (2004) 120 Cal.App.4th 758, 763-766); and the court cannot cure a defect in notice by continuing the hearing for the missing number of days (<i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1268). In addition, the court cannot "infer[] from silence" the plaintiff's "waiver of the right to the statutorily mandated minimum notice period for summary judgment hearings." (<i>Urshan v. Musicians' Credit Union, supra</i>, 120 Cal.App.4th at p. 768.) Here, Cal Pac's Proof of Service reflects that Defendants served the instant motion by e-mail on 3-13-26. (ROA No. 292.) Since the moving papers were electronically served, Cal Pac was required to serve the papers on or before 3-12-26. Cal Pac has not submitted any evidence to show Mazzella stipulated to shorten the statutory 81-day notice period, and the court record reflects no such stipulation. Clerk is ordered to give notice.
8	23-01309309 Gutierrez vs. General Motors, LLC	Motion for Attorney Fees Plaintiffs Martha L. Gutierrez and Jose A. Moreno's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$17,136.50. Plaintiffs seek lodestar fees of \$21,101.00, a 0.35 multiplier enhancement of \$7,385.35, \$3,500.00 in anticipated fees, and \$2,193.86 in costs and expenses. Timeliness of motion Defendant General Motors, LLC (GM) contends the motion is untimely as it was filed 189 days after Plaintiffs' filing of a Notice of Settlement.

“Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. [Citations.]” (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 (“*Hatlevig*”).)

Rule 3.1702, subdivision (b)(1) provides: “A notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court-including attorney’s fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.”

Rule 8.104 provides that a notice of appeal must be filed on or before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment.

“A voluntary dismissal is ‘effectively a ‘judgment’ within the meaning of the rule prescribing the time to appeal.” (*Hatlevig, supra*, 118 Cal.App.5th at p. 649.) “Thus, ‘the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).’ [Citation.]” (*Ibid.*) “A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (*Ibid.*)

On 3/17/25, the parties filed a Notice of Settlement. (ROA 189.) On 10/2/25, the parties filed a joint stipulation to dismiss with prejudice and retain jurisdiction pursuant to Code of Civil Procedure section 664.6. (ROA 226.) On 10/16/25, the Court dismissed the case with prejudice pursuant to the stipulation. (ROA 226.) Plaintiffs therefore had until 4/14/26 (180 days from 10/16/25) to file and serve Plaintiffs’ fee motion. Plaintiffs filed their motion on 11/6/25 and it is therefore timely.

Plaintiffs’ request for judicial notice (ROA 230)

In support of their motion, Plaintiffs request judicial notice of a tentative ruling and various court orders.

A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the *existence* of each document a court file, [it] can only take judicial notice of the *truth* of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (*People v. Thacker* (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS Plaintiffs’ request for judicial notice.

Plaintiffs’ evidentiary objections (ROA 254)

Plaintiffs object to various portions of the Declaration of Xylon Quezada.

The Court OVERRULES Plaintiffs’ objections.

Legal standard

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

Plaintiffs’ fraud claim

GM seeks a reduction of 5.3 hours (\$2,863.50) related to Plaintiffs’ fraud claim.

“When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action.” (*Akins v. Enterprise Rent-A-Car Co. of San Francisco* (2000) 79 Cal.App.4th 1127, 1133.)

In addition to their Song-Beverly causes of action, Plaintiffs included a claim for fraud in their complaint, first amended complaint, and second amended complaint. (ROA 2, 44, and 99.)

“[I]s well-established that ‘[a]ttorneys fees need not be apportioned between distinct causes of action where plaintiff’s various claims involve a common core of facts or are based on related legal theories.’” (*Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 408 [citations omitted].) Thus, a Court may elect not to apportion fees where “the claims involved a common core of facts and intertwined legal theories.” (*Ibid.*)

Plaintiffs’ fraud claim is based on the same set of facts, that is, that GM fraudulently concealed defects with the cooling system (see SAC ¶¶ 78, 81, 82) and each of Plaintiffs’ Song-Beverly causes of action relate to this alleged concealment.

As such, the Court declines to reduce fees related to Plaintiffs' fraud claim.

Excessive/unreasonable hours

GM seeks a reduction of fees which it contends are excessive and unreasonable based on Plaintiffs' counsel's use of templates to create various documents.

Complaint

GM seeks a reduction of 1.3 to the 1.8 hours billed to draft the complaint.

Given the similarity of the complaint to other complaints filed by Plaintiffs' counsel, the Court reduces the requested fees by 0.8 hours (\$753.00) (0.5 hours for Ms. Carvalho and 0.3 hours for Ms. Vaziri).

First amended complaint

GM seeks a reduction of 1.5 to the 2.0 hours billed to draft the complaint and first amended complaint.

Given the similarity between the first amended complaint to other amended complaints filed by Plaintiffs' counsel, the Court reduces the requested fees by 1.0 hour (\$595.00) (1.0 hour for Mr. Carroll).

Discovery responses

GM seeks a reduction of 3.0 hours to the 3.5 hours billed to respond to GM's discovery.

Given the largely identical discovery responses previously used by Plaintiffs' counsel, the Court reduces the requested fees by 2.5 hours (\$1,045.00) (1.5 hours for Mr. Tan and 1.0 hour for Mr. Carroll).

Meet and confer

GM seeks a reduction of 1.0 hour to the 1.5 hours billed to draft a meet and confer regarding Plaintiffs' discovery and proposed protective order.

Given the largely identical discovery responses previously used by Plaintiffs' counsel, the Court reduces the requested fees by 1.0 hour (\$395.00) (1.0 hour for Ms. Stoker).

Motions in limine

GM seeks a reduction of 1.4 hours to the 2.4 hours billed to draft motions in limine.

Given the largely identical motions in limine previously used by Plaintiffs' counsel, the Court reduces the requested fees by 1.4 hours (\$833) (1.4 hours for Mr. McCallister).

Trial subpoenas

GM seeks a reduction of the entire 2.2 hours billed to draft trial subpoenas to non-party dealer Selma Chevrolet's Custodian of Records. In addition to contending they were prepared using templates, GM contends they were unnecessary as they "did nothing to advance Plaintiffs' case" and "requested the same documents that Plaintiffs sought from GM." (Opp. at 9:25-26.)

Plaintiffs do not demonstrate why these subpoenas were necessary or otherwise dispute GM's contentions they did not advance Plaintiffs' case and sought duplicative records.

As such, the Court reduces the requested fees by 2.2 hours (\$1,089.00) (2.2 hours for Mr. Orte).

Trial documents

GM seeks a reduction of 3.0 hours to the 4.0 hours billed to draft trial documents as counsel's trial documents "do not vary much from case to case and were never filed in this case." (Opp. at 10:2-3.)

As Plaintiffs do not dispute GM's contentions, the Court reduces the requested fees by 2.0 hours (\$990.00) (2.0 hours for Mr. Orte).

Fee motions/anticipated fees

GM seeks a reduction of 1.1 hours to the 4.1 hours billed to draft the fee motion and the entire 4.0 hours billed for anticipated fees relating to the motion.

Given the similarity between the fee motion and other fee motions filed by Plaintiffs' counsel, the Court reduces Plaintiffs' requested fees by 1.1 hours (\$214.50) (1.1 hour for Ms. Ornelas).

A fee award may include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim. (*Ketchum v. Moses* (24 Cal.4th 1122, 1141.)

GM submits a declaration in support of its reply stating counsel spent 5 hours on the reply and anticipates another 1 to 1.5 hours to prepare for and attend the hearing. (Patel Decl., ¶¶ 4-5.)

While Plaintiffs are entitled to fees incurred in connection with its fee claim, including the reply and appearance at a hearing, the Court finds 6.5 hours excessive and reduces Plaintiffs' requested fees by 3.5 hours (\$1,550.00) (2.5 hours for Mr. Tantanyan and 1.0 hour for Mr. Patel).

Administrative and clerical activities

GM seeks a reduction of 1.5 hours (\$892.50) for clerical and administrative tasks.

Calendaring deadlines, preparing proofs of service, and preparing binders for a hearing, and saving documents to the computer, are examples of tasks that have been found to be clerical and therefore noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.)

The Court does not find the tasks at issue to be noncompensable administrative or clerical tasks and declines to reduce the fees as requested.

Inefficient fees

GM seeks a 10% (\$1,007.10) reduction in fees on the ground 14 timekeepers billed on this matter.

Plaintiffs contend only four attorneys and one law clerk accounted for 27.4 hours out of the 42.2 total hours billed (approximately 70%) with other attorneys performing non-duplicative tasks.

While GM contends the number of attorneys produced inefficient efforts, GM does not specifically identify any examples of resulting inefficiency.

As such, the Court declines to reduce the fees as requested.

Multiplier to the Lodestar

“The Supreme Court has ‘set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.’” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248, citation omitted.) “The trial court is neither foreclosed from, nor required to, award a multiplier.” (*Id.* at p. 247, citations omitted.)

Plaintiffs seek a 0.35 multiplier of the requested fees. Plaintiffs have not demonstrated this matter is more than a standard Lemon Law action or involved any unusual facts or novel legal issues requiring exceptional skill.

The Court declines to award a multiplier.

		Costs “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a).) Plaintiffs contend GM has not provided sufficient evidence to support the claimed costs nor filed a Memorandum of Costs. While GM relies on <i>Kaufman v. Diskeeper Corp.</i> (2014) 229 Cal.App.4th 1, 8-9, to contend a memorandum of costs is not required, <i>Kaufman</i> involved costs under Civil Code section 1717, not Civil Code section 1794, subdivision (d). As GM has not filed a Memorandum of Costs, costs cannot be claimed in this motion. In summary, the Court reduces the requested Lodestar fees by \$5,914.50, the anticipated fees by \$1,550, and declines to apply a multiplier and award costs. The Court GRANTS Plaintiffs Martha L. Gutierrez and Jose A. Moreno’s Motion for Attorneys’ Fees, Costs, and Expenses in the reduced amount of \$17,136.50.
9	24-01393855 <i>Klinkert vs. Stone Ridge Academy LLC</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record Motion to be Relieved as to Defendant Stone Ridge Academy, LLC The motion of attorney Josue C. Guerrero and law firm Greenacre Law, LLP to be relieved as counsel for defendant Stone Ridge Academy, LLC is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice of ruling which includes notice to Defendant that corporations must be represented by counsel.

		Motion to be Relieved as to Defendant Lois Smith The motion of attorney Josue C. Guerrero and law firm Greenacre Law, LLP to be relieved as counsel for defendant Lois Smith is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
10	20-01176795 <i>Loudon vs. Get It While You Can LLC</i>	Motion to Set Aside/Vacate Dismissal Plaintiff John C. Loudon’s Motion to Set Aside Dismissal is DENIED. “Although the language of the mandatory provision of section 473, subdivision (b), on its face, affords relief from unspecified dismissal caused by attorney neglect, our courts have, through judicial construction, prevented it from being used indiscriminately by plaintiffs’ attorneys as a perfect escape hatch to undo dismissals of civil cases. Courts have limited the application of the mandatory provision to those dismissals procedurally equivalent to defaults.” (Gotschall v. Daley (2002) 96 Cal.App.4th 479, 483 (cleaned up).) “A default judgment is entered when a defendant fails to appear, and, under section 473, relief is afforded where the failure to appear is the fault of counsel. Similarly, under our view of the statute, a dismissal may be entered where a plaintiff fails to appear in opposition to a dismissal motion, and relief is afforded where that failure to appear is the fault of counsel. The relief afforded to a dismissed plaintiff by our reading of the statute is therefore comparable to the relief afforded a defaulting defendant.” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 619.) In Leader, the court ruled that failure to file an amended complaint after a demurrer has been sustained with leave to amend is not within the scope of Section 473, subdivision (b) because plaintiff had an opportunity to oppose the dismissal at the demurrer hearing. (Leader, supra, 89 Cal.App.4th 603, 621.) The dismissal of Defendant Byron Holley was not procedurally equivalent to a default judgment. It was Plaintiff who requested the dismissal. Thus, Plaintiff was not deprived of opposing the merits of the dismissal by his attorney’s mistake. Therefore, relief under may only be offered through the Court’s equitable power. Courts’ equitable power to set aside or modify judgments is limited. “[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 982.) One circumstance is where there is evidence of an extrinsic mistake, “a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits.” (Id. at 981.) “Extrinsic mistake is found when [among other things] ... a mistake led a

		court to do what it never intended....” (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-472.) Plaintiff has not demonstrated an extrinsic mistake that led to his attorney requesting the dismissal of Holley. Counsel states they requested Holley’s dismissal because they believed Holley had not been served with the Complaint. This is an intrinsic mistake to the litigation and to Plaintiff’s counsel. Thus, the Court declines to exercise its equitable power in the absence of appropriate circumstances authorizing its use.
11	24-01407733 <i>Townsend vs. Ford Motor Company</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Production 4) Motion to Compel Response to Requests for Admissions Form Interrogatories Defendant Ford Motor Company’s Motion to Compel Responses to Form Interrogatories is GRANTED. Plaintiff is ORDERED to serve responses to Defendant’s Form Interrogatories (set one) without objections within 20 days of this order. (See Code Civ. Proc., § 2030.290(a).) Defendant’s request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290(a)(1)-(2).) Plaintiff has only offered an explanation as to why he did not serve responses nearly a year after the responses were originally due. “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2030.290(c).)

Plaintiff's opposition is not substantially justified because Plaintiff has failed to provide any justification for failing to initially serve his responses. Thus, sanctions are mandatory.

Special Interrogatories

Defendant Ford Motor Company's Motion to Compel Responses to Special Interrogatories is GRANTED.

Plaintiff is ORDERED to serve responses to Defendant's Special Interrogatories (set one) without objections within 20 days of this order. (See Code Civ. Proc., § 2030.290(a).)

Defendant's request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290(a)(1)-(2).) Plaintiff has only offered an explanation as to why he did not serve responses nearly a year after the responses were originally due.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290(c).)

Plaintiff's opposition is not substantially justified because Plaintiff has failed to provide any justification for failing to initially serve his responses. Thus, sanctions are mandatory.

Requests for Production

Defendant Ford Motor Company's Motion to Compel Responses to Requests for Production is GRANTED.

Plaintiff is ORDERED to serve responses to Defendant's Requests for Production (set one) without objections within 20 days of this order. (See Code Civ. Proc., § 2031.300(a).)

Defendant's request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300(a)(1)-(2).) Plaintiff has only offered an explanation as to why he did not serve responses nearly a year after the responses were originally due.

"Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2031.300(c).)

Plaintiff's opposition is not substantially justified because Plaintiff has failed to provide any justification for failing to initially serve his responses. Thus, sanctions are mandatory.

Requests for Admission

Defendant Ford Motor Company's Motion Deeming the Truth of Facts and Genuineness of Documents Requested in its Requests for Admission (set one) is GRANTED.

The Court ORDERS the truth of any matters and genuineness of any documents specific in Defendant's Requests for Admission (set one) be deemed admitted. (Code Civ. Proc., § 2033.280(b).)

Defendant's request for sanctions is GRANTED in the amount of \$560 against Plaintiff and his counsel of record, jointly and severally. Plaintiff has served responses; however, the responses include improper objections to every request. Plaintiff has not demonstrated mistake, inadvertence, or excusable neglect in failing to originally serve timely responses. The court may relieve the party of their waiver of objections if the responding party shows they (1) has subsequently served a substantially compliant response, and (2) that her failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280(a)(1)-(2).) Plaintiff has only offered an explanation as

		to why he did not serve responses nearly a year after the responses were originally due. Further, the improper objections are not in substantial compliance with Section 2033.220 which does not authorize objections. “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280(c).)
12	24-01393087 <i>Vatics, Inc. vs. SkyBell Technologies Inc.</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Noah Green of The Green Firm, P.C. to withdraw as attorney of record for Defendant Skybell Technologies, Inc. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.